

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YUEPING FENG,

Petitioner

VS.

ZHU ZHAN MIAO,

Respondent

) Case Number: FDI-24-800492

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDRE CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Yueping Feng and Respondent Zhu Zhan Miao. They share two minor children: Daniel Miao (age 10) and Patricia Miao (age 7).
- 2) On March 27, 2026, Respondent filed a Request for Order seeking to modify the existing child support order, citing a change in circumstance. Respondent alleges the existing order is based on a 1% timeshare; however, since March 15, 2026, the parties have been exercising an equal parenting plan.
- 3) On March 27, 2026, Respondent filed an Income and Expense Declaration, which contains the following relevant information:
 - a. Income: \$5373.00 Salary; \$703.00 Overtime
 - b. Filing Status: Single – 1
 - c. Mandatory Retirement: \$451.00/month
 - d. Health Insurance Premiums: \$45.00/month
 - e. Timeshare: 50%

1 4) There is no Proof of Service on File indicating Respondent's Request for Order and Income and
2 Expense Declaration were served on Petitioner.

3 5) Petitioner did not file a Responsive Declaration.

4 **B. Findings and Order**

5 1) The Court finds good cause to **CONTINUE the hearing to July 16, 2026 at 9:00 a.m. in**
6 **Department 403** to permit Respondent time to effectuate service as required by Code of Civil
7 Procedure section 1005(b).

8 2) At least 16 Court days prior to the next hearing date, Respondent shall file and serve on Petitioner
9 the (a) Request for Order and Income and Expense Declaration, (b) Continuance Order contained
10 herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of
11 Civil Procedure (i.e., a person over the age of 18 shall mail to Petitioner the (a) Request for Order
12 and Income and Expense Declaration, (b) Continuance Order, and (c) Tentative Ruling
13 Instructions, and then Respondent shall file form FL-335 (Proof of Service) with the Court
14 confirming service was effectuated).

15 3) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive
16 Declaration.

17 4) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply
18 Declaration.

19 5) The Court will prepare the Findings and Order After Hearing.
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